

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 18-07

MARINE TRANSPORT LOGISTICS, INC.

COMPLAINANT

v.

CMA CGM (AMERICA) LLC

RESPONDENT

JOINT STATUS REPORT AND JOINT MOTION FOR EXTENDED STAY

Complainant Marine Transport Logistics, Inc. ("MTL") and Respondent CMA CGM (America) LLC ("CMA") hereby jointly submit this Joint Status Report, and respectfully request that Your Honor issue an Order extending the stay of proceedings in the above-captioned matter due to ongoing settlement and mediation discussions.

As of December 14, 2018, CMA and MTL (hereinafter collectively referred to as "the Parties") remain actively engaged in settlement discussions, which have been facilitated by the Federal Maritime Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS"). Given the ongoing status of settlement discussions, the Parties hereby jointly request an extended stay of this proceeding to allow them to exhaust the potential for settlement, including settlement discussions through CADRS mediation.

Given the potential for settlement, it would be unreasonable to move forward with the proceeding at this time. A stay would conserve the resources of the FMC and the Parties. The Parties further request an Order providing for an in person mediation facilitated by CADRS in the event a successful settlement is not reached on or before January 31, 2019.

For the avoidance of doubt, the Parties understand and agree that the stay requested herein shall be lifted upon unilateral application of either MTL or CMA to Your Honor requesting a lift of the stay. In the event the stay is lifted, the Parties agree the timeline for proceeding in the above-captioned matter shall be extended to provide at allow at least 30 calendar days following the date when the stay is lifted for either Party to submit Initial Disclosures or responses to Discovery.

The Parties have conferred regarding both this Joint Status Report and this Joint Motion to Stay Proceedings in accordance with 46 CFR 502.71(a), and both Parties support this joint submission.

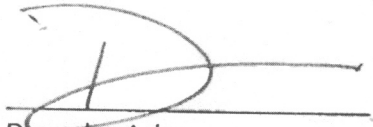
CONCLUSION

WHEREFORE, the Parties respectfully submit this Joint Status Report and request that this Joint Motion to Stay Proceeding be granted, and that Your Honor issue an Order staying this action and all associated proceedings and deadlines until February 1, 2019. In the

Dated: December 14, 2018

[Remainder of page intentionally left blank, Signature page follows.]

Respectfully submitted,



Draughn Arbona

CMA CGM (America) LLC

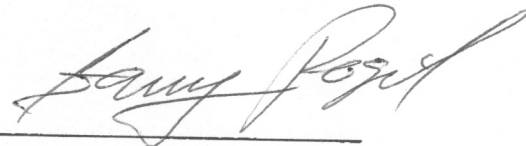
5701 Lake Wright Drive

Norfolk, VA 23502

Tel: 757-961-2132

usa.darbona@usa.cma-cgm.com

Attorney for Respondent CMA CGM (America) LLC



Garry Pogil

Law Offices of Garry Pogil

112 West 34th Street,

18th Floor

New York, NY 10120

Tel: 917-593-1466

garry.pogil@gmail.com

Attorney for Complainant Marine Transport Logistics